

Tentative Rulings for June 8, 2026 Department 2

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
CVPS2202260	LOZANO VS LEDESMA & MEYER CONSTRUCTION CO., INC.	MOTION FOR RECONSIDERATION (CCP S 1008)

Tentative Ruling:

The Court denies this motion for reconsideration. The matter is off calendar.

The Court reiterates its order on April 17, 2026:

Court has read and considered court filings.

The Court having read and considered the pleadings of both parties, having read and considered the Court of Appeal's Remittitur filed January 20, 2026, denies the instant "Motion to Reactivate Case on Complaint" Hearing re: Motion (to Reactivate Case) on 04/24/2026 at 08:30 AM vacated.

The Court of Appeal stated in its November 17, 2025 Order:

"The court has reviewed the civil case information statement filed November 10, 2025, the notice of appeal filed October 16, 2025, the judgment entered July 17, 2023, from which appellant attempts to appeal, and the notice of entry of judgment dated August 4, 2023. Because the appeal appears to be untimely, it must be and is DISMISSED. California Rules of Court, rule 8. 104(a) provides that a notice of appeal must be filed within 60 days following service of the notice of entry of judgment or 180 days after entry of judgment, whichever is earlier. In this case, the notice of appeal was filed 804 days following service of the notice of entry and 822 days after entry of judgment. The timeliness requirement is absolutely jurisdictional. There are no exceptions other than those provided in California Rules of Court, rule 8. 108. (K.J. v. Los Angeles Unified School Dist. (2020) 8 Cal.5th 875, 881; Garg v. Garg(2022) 82 Ca1.App. 5th 1036, 1041.) Thus, the court has no jurisdiction over this appeal."

In plain language, this case has ended.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501278	NIZAM VS TAPIA	MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT

Tentative Ruling:

Summary of Ruling: The Court declines to rule on all evidentiary objections. The request for summary adjudication is improper and is denied as it fails to comply with California Rules of Court, rule 3.1350(b) and (d) and CCP § 437c(f)(1). The court treats this as a motion for summary judgment.

When treated as a motion for summary judgment, Plaintiff fails to negate all elements of negligence by requesting the issue of damage be left for trial. Neither the motion nor the separate statement provide evidence of damage in the form of personal injury to Plaintiff, property damage to Plaintiff's vehicle, or otherwise. The court denies the motion entirely.

FACTUAL / PROCEDURAL CONTEXT

This is an automobile accident case. On 3/10/2025, Matthew Nizam ("Plaintiff") filed a Judicial Council form complaint against Enrique Tapia ("Defendant"). The complaint asserts two causes of action for motor vehicle negligence and general negligence. The complaint alleges Defendant ran a red light and collided with Plaintiff's vehicle, causing injury.

Now, Plaintiff moves for summary adjudication "...on the issue of liability only, pursuant to Code of Civil Procedure section 437c subdivision (f)(1)." (See Plaintiff's Notice of Motion.) Plaintiff seeks to summarily adjudicate the issue of liability, leaving damages for trial. Plaintiff provides evidence that Defendant has admitted liability and has no evidence of comparative fault.

In opposition, Defendant argues the motion is procedurally deficient due to the separate statement not identifying the issues Plaintiff seeks to summarily adjudicate and because you cannot summarily adjudicate all elements of negligence except damages.

In reply, Plaintiff argues that the procedural defects with the separate statement are harmless error and that this is a proper motion for summary judgment as to "the issue of duty" as allowed by CCP § 437c(f)(1)

ANALYSIS

I. Summary Judgment Standard

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) When a plaintiff is the moving party, the plaintiff has the burden to produce admissible evidence on each element of a cause of action entitling him to judgment. (CCP § 437c(p)(1).) The plaintiff does not have the burden to disprove affirmative defenses. (*Id.*) At that point, the burden shifts to the defendant to show that a triable issue exists. (*Id.*)

II. MSJ - Merits

A. Evidentiary Objections

Defendant submits evidentiary objections in opposition and Plaintiff submits evidentiary objections along with the reply brief. For the reasons stated below, the motion is denied which makes all evidentiary objections moot. The court declines to rule on all evidentiary objections.

B. Procedural Issues and Denial on Merits

Plaintiff's motion contains numerous procedural defects that warrant denial entirely.

A party can seek summary adjudication of one or more cause of action, one or more affirmative defense, one or more claim for damages, or one or more issue of duty. (CCP § 437c(f)(1).) "If a summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated verbatim, in the separate statement of undisputed material facts." (California Rules of Court, rule 3.1350(b).) The separate statement must separately identify each cause of action at issue. (*Id.* at (d)(1)(A).) It must also identify "[e]ach supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (*Id.* at (d)(1)(B).)

Here, the separate statement does not separate out any of the specific causes of action or separate issues upon which summary adjudication can be sought. There is no authority allowing Plaintiff to move for summary adjudication of liability only. Plaintiff states that *Childhelp, Inc. v. City of Los Angeles* (2023) 91 Cal.App.5th 224, 233 supports his argument that under CCP § 437c(f)(1), a party may move for summary adjudication on liability alone, leaving damages for trial. *Childhelp, Inc.* does not mention subdivision (f)(1) anywhere in the opinion and primarily concerns the applicability of promissory estoppel against a public entity. (*Id.* at 241-242.) Page 233 of the opinion, to which Plaintiff's pin cite refers too, is a part of the factual and procedural background of the case.

While Plaintiff is correct that CCP § 437c(f)(1) allows summary adjudication of the issue of duty, it does not allow piecemeal adjudication of the other elements of negligence – that is, breach and causation as argued in Plaintiff's motion. Neither the notice nor the separate statement identify the motion as one brought on the issue of duty. It is not until the reply brief that Plaintiff attempts to turn this into a motion for summary adjudication on the issue of duty, while still trying to argue that this allows the court to also summarily adjudicate breach and causation as well.

Due to this, the request for summary adjudication is improper and is denied as it fails to comply with California Rules of Court, rule 3.1350(b) and (d) and CCP § 437c(f)(1). The court therefore treats this as a motion for summary judgment.

When treated as a motion for summary judgment, the motion is denied because Plaintiff fails to meet his initial burden to negate all elements of negligence. To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. (*Thomas v. Stenberg* (2012) 206 Cal.App.4th 654, 662.) By Plaintiff's own admission, the motion does not address or establish damages. Neither the motion nor the separate statement provide evidence of

damage in the form of personal injury to Plaintiff, property damage to Plaintiff's vehicle, or otherwise. The court denies the motion entirely.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501478	T.G. VS CORONA-NORCO UNIFIED SCHOOL DISTRICT	MOTION FOR ATTORNEYS FEES BY T.G.

Tentative Ruling:

Matter continued to June 15, 2026 in Department 4.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502502	FIRSTLINE ENVIRONMENTAL SOLUTIONS, LLC VS VAN DYK TANK LINES, INC.	MOTION FOR LEAVE TO AMEND 2ND AMENDED COMPLAINT

Tentative Ruling:

Summary of Ruling: The Court grants the motion. It is not necessary for the court to reach the objections as all evidence in support of this motion except the proposed amended complaint and the Killem declaration are irrelevant to whether leave to amend should be allowed.

Factual / Procedural Context:

This action rises out of unpaid invoices for hazardous substance removal. Statewide Emergency Services Inc. ("Statewide") is an emergency hazardous substance removal contractor. (SAC, ¶ 8.) Plaintiff Firstline Environmental Solutions, LLC alleges that on August 15, 2023 it purchased all right, title and interest in the accounts receivable of Statewide under a "Transition Service Agreement," and Plaintiff is thereby entitled to all amounts earned by Statewide as of the date of the agreement and as well as any amounts it earns in the future.

This action concerns nonpayment for services rendered by Statewide from August 8, 2024, through September 25, 2024, for removal of hazardous material fuel spill in the City of Banning, referred to as the "Banning Spill." Statewide had contracted with defendant Van Dyk Tank Lines on the Banning Spill. Defendant Federated Service Insurance Company is Van Dyk's insurer. Plaintiff alleges that Van Dyk's managing agent, Ronald Nuckles (also a Defendant), at the site of the Banning Spill and entered into an oral contract for Statewide's work on the Banning Spill, under the same terms as the previous work performed by Statewide on behalf of Van Dyk on the "I-15 Spill" earlier in the year, including the manner in which payment would be made for Statewide services by Van Dyk's insurer, Federated. Plaintiff further alleges that, on September

09, 2024, Federated's claims supervisor, Mason Adams, spoke with James Kirk, the managing employee and agent for both Statewide and Plaintiff, and manifested his agreement to pay the amount billed as of that date and to negotiate the cost of the disposal portion of the work. After various submissions of invoices and other details, on October 30, 2024, Federated notified Plaintiff for the first time of its refusal to pay the invoices, questioning both Statewide's rates and its means and methods employed for the work performed.

This action is for the outstanding balance on those invoices. In the Second Amended Complaint, plaintiff had alleged causes of action for (1) breach of oral contract, (2) account stated, (3) breach of the covenant of good faith and fair dealing, and (4) quantum meruit. All four causes of action were alleged against all defendants. The defendants (Van Dyk, Nuckles, and Federated) all demurred to the SAC. While that demurrer was pending, plaintiff filed this motion for leave to amend. Before the motion for leave to amend could be heard, the court ruled on the demurrer.

The court's tentative ruling was to overrule the demurrer as to defendant Van Dyk. As to Federated and Nuckles, the tentative indicated that court's intention was to sustain the demurrer as "Plaintiff fails to allege facts demonstrating they are proper parties to this action. Leave should be granted only if Plaintiff is able to state additional facts to cure the defects." The parties requested oral argument and argued the demurrer on May 20. The minute order states in part:

Demurrer by RONALD O NUCKLES, LLC, FEDERATED SERVICE INSURANCE COMPANY, LLC or 2nd Amended Complaint for Breach of Contract/Warranty (Over \$35,000) of FIRSTLINE ENVIROMENTAL SOLUTIONS, LLC sustained.

Demurrer by VAN DYK TANK LINES, INC., LLC on 2nd Amended Complaint for Breach of Contract/Warranty (Over \$35,000) of FIRSTLINE ENVIRONMENTAL SOLUTIONS, LLC overruled.

Leave to amend 2nd Amended Complaint for Breach of Contract/Warranty (Over \$35,000) of FIRSTLINE ENVIRONMENTAL SOLUTIONS, LLC granted, with 10 days to leave to amend.

- - As to Defendant Federated and Nuckles.

*The demurrer is sustained as to all causes of action alleged against Defendants Federated and Nuckles on the ground of misjoinder (Code Civ. Proc., § 430.10(d)) for reason Plaintiff fails to allege facts demonstrating they are proper parties to this action. **Leave should be granted only if Plaintiff is able to state additional facts to cure the defects.***

- - As to Defendant Van Dyk

The demurrer is overruled as to all causes of action. Plaintiff to file an amended pleading within 10 days, unless the court orders otherwise. (Cal. Rules of Court, rule 3.1320(g).)

Tentative ruling is ordered filed.

(Minute Order dated 5/20/26 [emphasis added].) The motion for leave to amend is now before the court.

Analysis

The standard for allowing amendment of a complaint is well known. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” (C.C.P. §473(a).) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) Where the proposed amendment would result in little or no prejudice to the opposing party, the “liberal rule of allowance prevails.” (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564.) Denial is only appropriate when “inexcusable delay and probable prejudice to the opposing party’ is shown.” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487; *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486.)

“[T]here has developed in this state a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali*, 48 Cal.App.4th 471; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.)

Leave to amend a complaint can be denied if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486) or if the proposed amendment fails to state a cause of action (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274). Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence or added costs of preparation, increased burden of discovery, and so on. (*Magpali*, 48 Cal.App.4th 471.) But the fact that the amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa*, 118 Cal.App.3d 486, 490.)

Here there is no trial date set, the case is barely a year old, and opposing parties cannot point to any prejudice as defined in *Magpali* and other cases. To the extent there is a question of whether the proposed TAC states any valid causes of action, “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings. Such proceeding might serve to develop the factual content of the proposed defense and to refine the language in which it is pleaded. Should a general demurrer ultimately be sustained to the proposed defense, the appellate court would at least be apprised of the ground on which the proposed defense was rejected [Citation] and thus be in a position to focus its attention on the appropriate considerations on review.” (*California Casualty*, 173 Cal.App.3d 274, 281; see also *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Defendants do claim procedural defects in the proposed TAC and various failures to comply with Cal. Rules of Court, rule 3.1324. These provisions require that the moving party provide a copy of the proposed pleading, identify the new allegations proposed, and provide a declaration describing when the new facts were discovered and why the request for amendment was not made earlier. Defendant contends that the proposed TAC doesn't include the exhibits supposedly attached to the TAC or a sufficient declaration.

The copy of the TAC attached to the motion on file with the court does include exhibits, and the Kellam declaration attached to the motion does describe how some of the new facts alleged were uncovered during discovery. (Kellem declaration, ¶¶3-6.) This is sufficient in light of the general public policy in favor of allowing amendments, especially as the court had already granted leave to amend when the demurrer was sustained on May 20; enforcement of other procedural requirements for a motion for leave to amend would be unnecessary here when the ruling on the demurrer allowed the plaintiff to amend the complaint without any further showing.

The motion is granted.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2502741	BACA VS ORANGECREST PONY BASEBALL, INC.	MOTION FOR SANCTIONS

Tentative Ruling:

Summary of Ruling: The Court denies the motion.

Factual / Procedural Context

On June 10, 2025, Plaintiff Krystal Baca, *in pro per* ("Plaintiff") filed a Complaint against Defendants Orangecrest Pony Baseball, Inc. ("Orangecrest"), Aria Zolfaghari, Jeremy Langley, Sarah Langley, Delia Lopez, Delores Todorovski, Michael Penn, John Blanco, and Thomas Boyer (together "Defendants") asserting causes of action for temporary injunction, permanent injunction, declaratory relief, accounting, negligence, fraud, misrepresentation, emotional distress, and intentional infliction of emotional distress ("IIED"). Plaintiff alleges that Orangecrest is a California public benefit corporation that was suspended by the Franchise Tax Board ("FTB") and declared delinquent with the Attorney General's Charitable Trust Registry, but continued to operate, collect registration fees, and solicit public sponsorships. The individual Defendants acted as de facto directors without valid elections, in violation of the nonprofit's own bylaws. The Department of Justice denied Orangecrest's 2025 raffle registration due to chronic noncompliance, but Defendants continued to conduct raffles and failed to report the proceeds to the IRS; failed to report snack bar revenue, raffle income, board member compensation, umpire payments, or field permit costs; employed umpires, including minors, without providing workers compensation coverage;

and misrepresented their coverage status to the City of Riverside. After demanding transparency, Plaintiff was removed as a coach and her minor son was excluded from All- Star participation.

On August 5, 2025, Plaintiff filed a First Amended Complaint (“FAC”) against Defendants asserting 16 causes of action: (1) breach of fiduciary duty; (2) fraud; (3) negligence; (4) retaliation; (5) unfair business practices (UCL); (6) Civil Rights violation – Bane Act (Civ. Code § 52. 1); (7) violation of Nonprofit Integrity Act (Govt. Code §§ 12586, 12599.6); (8) violation of Charitable Trust and Raffle (Penal Code § 320. 5; Govt. Code § 12586); (9) corporate suspension misconduct (Rev. & Tax Code § 23301); (10) failure to produce records (Corp. Code § 6333); (11) conflict of interest and self-dealing (Corp. Code §§ 5233, 7212); (12) violation of Civil Rights under color of law (42 USC § 1983; Civ. Code § 52.1); (13) temporary injunctive relief; (14) permanent injunctive relief; (15) declaratory relief; and (16) accounting.

On March 13, 2026, Orangecrest served discovery on Plaintiff, including form interrogatories (“FROGs”), special interrogatories (“SPROGs”), requests for admissions (“RFAs”), and requests for production of documents (“RFPs”). On March 18, 2026, it served a notice of deposition on Plaintiff for a deposition on April 8, 2026. Plaintiff objected to the deposition date on March 19, 2026.

On April 7, 2026, Plaintiff filed an *ex parte* application for a protective order continuing her deposition to a date after she serves responses to Orangecrest’s written discovery and staying the accompanying document production. Orangecrest opposed the *ex parte*, and on April 8, 2026, the Court denied the *ex parte*.

On April 23, 2026, the Court sustained Defendants’ demurrer to the 1st, 4th, 6th-9th, 11th, 12th, and 16th causes of action with leave to amend, and sustained the demurrer to the 2nd, 3rd, 5th, 10th, and 13th-15th cause of action without leave to amend. On May 29, 2026, Plaintiff filed a Second Amended Complaint (“SAC”) asserting causes of action for declaratory relief and violation of member inspection rights under Corp. Code § 6333.

Orangecrest now moves for monetary sanctions pursuant to C.C.P. §§ 128.5, 128.7, 2025.420(h), 2030.090(d), 2031.060(h), and 2033.080(d) based on Plaintiff’s filing of the *ex parte* application for a protective order that was denied by the court for lack of good cause and lack of irreparable harm.

In opposition, Plaintiff argues that the court merely denied her *ex parte*, but made no finding that it was made without substantial justification. She further argues that she had substantial justification; there is no basis for sanctions under C.C.P. §§ 128.5 and/or 128.7; and the fees sought are excessive.

In reply, Orangecrest argues that the Notice of Ruling and comments from the court establish the lack of substantial justification for the *ex parte*; there was no substantial justification; the code sections cited support sanctions; and the fees sought are reasonable and proper.

Analysis

I. Discovery Sanctions

Orangecrest first argues that it is entitled to \$7,540 in monetary sanctions pursuant to C.C.P. §§ 2025.420(b), 2030.090(d), 2031.060(h), and 2033.080 because Plaintiff had no substantial justification for bringing her *ex parte* application for a protective order related to the sequencing of written discovery and her deposition.

The above-referenced sections do provide that “[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” However, Defendant did not establish that Plaintiff lacked substantial justification for the *ex parte*. It is correct that the Court denied the *ex parte*, but nowhere in the court order does it state that Plaintiff lacked substantial justification in bringing the motion. Even the Notice of Ruling, prepared by Defendant, does not state that the Court found a lack of substantial justification for the *ex parte*. (See, Decl. of David Davidson, Ex. 6.) Just because a motion or *ex parte* is denied does not automatically mean there was no substantial justification for the motion/application. Additionally, if Defendant believed it was entitled to sanctions related to the *ex parte* application for a protective order, it could and should have requested those sanctions in its opposition to the *ex parte*, but it did not.

Based on the evidence provided and the *ex parte* application and hearing thereon the Defendant is not entitled to sanctions. Accordingly, the motion is denied.

Sanctions Based on C.C.P. §§ 128.5 and 128.7

The sanctions process is usually commenced by party motion, although a court may issue an order to show cause *sua sponte*. (C.C.P. §128.7(c)(2).) The moving party must first serve the motion for sanctions on the offending party at least 21 days before filing it; this safe harbor provision allows the opposing party to withdraw or appropriately amend the “challenged paper, claim, defense, contention or denial.” (*Barnes v. Department of Correction* (1999) 74 Cal.App.4th 126, 130.) At the end of the 21-day waiting period, if the pleading is not withdrawn, the moving party may file the motion. (C.C.P. §128.7(c)(1); *Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 698-99.) Here, there is no evidence that Orangecrest complied with the safe-harbor provision, so the motion should be denied on that basis.

Additionally, the motion based on C.C.P. §§ 128.5 and 128.7 should be denied on its merits. Pursuant to C.C.P. § 128.7, an attorney or unrepresented party who presents a pleading, motion or similar paper to the court makes an implied certification as to its legal and factual merit, and a violation of this implied certification subjects the attorney and/or party to sanctions. (C.C.P. § 128.7; *Murphy v. Yale Materials Handling Corp.* (1997) 54 Cal.App.4th 619,623.) Under C.C.P. § 128.7, “there are basically three types of submitted papers that warrant sanctions: factually frivolous (not well grounded

in fact); legally frivolous (not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law); and papers interposed for an improper purpose.” (*Guillemín v. Stein* (2002) 104 Cal.App.4th 156, 167.) Whether the paper or pleading is frivolous or improper is tested objectively. (*Bockrath v. Aldrich Chem. Co., Inc.* (1999) 21 Cal.App.4th 71, 82.) “A claim is objectively unreasonable if any reasonable attorney would agree that it is totally and completely without merit.” (*Peake v. Underwood* (2014) 227 Cal.App.4th 428, 440 [internal quotation marks and citation omitted].) It is not necessary to demonstrate that the party acted in bad faith. (*Id.* at 449.) “A sanction imposed for violation of subdivision (b) shall be limited to what is sufficient to deter repetition of this conduct or comparable conduct by others similarly situated. Subject to the limitations in paragraphs (1) and (2), the sanction may consist of, or include, directives of a nonmonetary nature, an order to pay a penalty into court, or, if imposed on motion and warranted for effective deterrence, an order directing payment to the movant of some or all of the reasonable attorney's fees and other expenses incurred as a direct result of the violation.” (C.C.P. §128.7(d).) In addition to these sanctions, “[i]f warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion.” (C.C.P. §128.7(c)(1).)

Under C.C.P. § 128.5(a), “[a] trial court may order a party, the party’s attorney, or both, to pay reasonable expenses, including attorney’s fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay.” An action or tactic is brought in bad faith, if it is done for improper purposes, like harassment or delay. (*Bach v. McNelis* (1989) 207 Cal.App.3d 852, 876.) The term frivolous in § 128.5 is defined as “totally and completely without merit or for the sole purpose of harassing an opposing party.” (C.C.P. § 128.5(b)(2).) The moving party has the burden to establish that the opposing party’s conduct was frivolous, made in bad faith, or done solely to cause unnecessary delay. (*Id.*) Sanctions under C.C.P. § 128.5 are discretionary, and the court is not required to issue any sanctions, monetary or otherwise. (C.C.P. §§ 128.5(a), 128.7(a); *Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 421.)

“[T]he sanctions statute must not be construed so as to conflict with the primary duty of an attorney to represent his or her client zealously. Forceful representation often requires that an attorney attempt to read a case or an agreement in an innovative though sensible way. Our law is constantly evolving, and effective representation sometimes compels attorneys to take the lead in that evolution. (*Peake, supra*, 227 Cal.App.4th at 441 [internal quotations omitted].) Furthermore, these statutes “should be utilized only in the rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose. ... Because our adversary system requires that attorneys and litigants be provided substantial breathing room to develop and assert factual and legal arguments, [section 128.7] sanctions should not be routinely or easily awarded even for a claim that is arguably frivolous ..., and instead should be made with restraint. ... Indeed, even if a plaintiff could not successfully defend against either demurrer or summary judgment, that alone is insufficient to support the sanction of dismissal.” (*Kumar v. Ramsey* (2021) 71 Cal.App.5th 1110, 1121 [internal citations and quotations omitted] [emphasis added]; see also, *Peake, supra*, 227 Cal.App.4th at 448 [“Our conclusion that the court properly

found Peake's statutory and common law claims were without merit, and there was no arguable factual or legal basis for asserting those claims, does not necessarily answer the question whether sanctions were appropriate under the circumstances of the case."].)

Here, Defendant presents no evidence that the *ex parte* was objectively frivolous or made in bad faith. Therefore, it has not established it is entitled to sanctions under C.C.P. §§ 128.5 and/or 128.7. For the reasons stated above, the Court denies the motion on its merits.